voice tests, the denominator of the fraction being /15 for the whispered voice and /30 for the spoken voice. Any chronic disease of the external, middle, or internal ear will be sufficient cause for rejection. Hearing in each ear must be normally acute to the spoken and whispered voice. In examining the acuteness of hearing with the voice, one ear of the candidate shall be closed while the other ear is being examined, and his eyes shall be covered to prevent lip reading.

(Sec. 1, 63 Stat. 503, 545, as amended; 14 U. S. C. 92, 633. Interprets or applies sec. 1, 63 Stat. 508, as amended; 14 U. S. C. 182)

Dated: April 2, 1954.

[SEAL] H. CHAPMAN ROSE,
Acting Secretary of the Treasury.

[F. R. Doc. 54-2948; Filed, Apr. 19, 1954; 8:50 a. m.]

TITLE 42—PUBLIC HEALTH

Chapter I—Public Health Service, Department of Health, Education, and Welfare

PART 71—FOREIGN QUARANTINE

DOCUMENTS OF ENTRY

CROSS REFERENCE: For amendment to § 71.508, see Title 19, Chapter I, Part 6, *supra*.

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

Appendix—Public Land Orders

[Public Land Order 953]

ALASKA

MODIFYING EXECUTIVE ORDER NO. 6957 OF FEBRUARY 4, 1935 SO AS TO PERMIT MINERAL LEASING OF THE RESERVED LANDS

By virtue of the authority vested in the President by section 1 of the act of June 25, 1910, c. 421 (36 Stat. 847; 43 U. S. C. 141), and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

Executive Order No. 6957 of February 4, 1935, withdrawing certain public lands in Alaska from settlement, location, sale, entry, or other form of appropriation, and reserving them for classification and in aid of legislation, so far as such order has not heretofore been modified for the purposes herein expressed, is hereby further modified so as to permit the leasing of the mineral deposits in such withdrawn lands, including the reserved minerals in such of the lands as have subsequently been entered or patented, pursuant to the provisions of the Mineral Leasing Act of February 25, 1920 (41 Stat. 437; 30 U. S. C. 181), as amended and supplemented, and the act of October 20, 1914, c. 330, 38 Stat. 742, as amended by the act of March 4, 1921, c. 152 (41 Stat. 1363; 48 U. S. C. 432–445; 446–452) for such lands.

DOUGLAS MCKAY,
Secretary of the Interior.

APRIL 13, 1954.

[F. R. Doc. 54-2921; Filed, Apr. 19, 1954; 8:45 a. m.]

[Public Land Order 954]

ARKANSAS

REVOKING EXECUTIVE ORDER NO. 6912 OF DECEMBER 3, 1934, WITHDRAWING PUBLIC LANDS FOR CLASSIFICATION

By virtue of the authority vested in the President by section 1 of the act of June 25, 1910 (36 Stat. 847; 43 U. S. C. 141), and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

Executive Order No. 6912 of December 3, 1934, temporarily withdrawing the following-described lands in Arkansas for classification as to their suitability for wildlife refuge purposes, is hereby revoked:

FIFTH PRINCIPAL MERIDIAN

T. 14 N., R. 9 E.,
Sec. 1, lot 1.

The tract described contains 9.82 acres.

The lands are subject to the laws of the State of Arkansas relating to the organization, government and regulation of drainage districts, by virtue of the act of June 17, 1920 (41 Stat. 392; 43 U. S. C. 1041–1048) and are included in an application for patent of Drainage District No. 17 of Mississippi County, Arkansas, pursuant to an order of the Mississippi Chancery Court, Chickasawba District, of September 27, 1926, approving a Commissioner's deed to the land for non-payment of Drainage District assessments.

DOUGLAS MCKAY,
Secretary of the Interior.

APRIL 13, 1954.

[F. R. Doc. 54-2920; Filed, Apr. 19, 1954; 8:45 a. m.]

TITLE 49—TRANSPORTATION

Chapter I—Interstate Commerce Commission

Subchapter B—Carriers by Motor Vehicle

[Ex Parte MC-43]

PART 207—LEASE AND INTERCHANGE OF VEHICLES

INTERCHANGE OF EQUIPMENT

At a general session of the Interstate Commerce Commission, held at its office in Washington, D. C., on the 12th day of April A. D., 1954.

Upon consideration of the record in the above-entitled proceeding and of petition of Refrigerated Transport Co., Inc., Watkins Motor Lines, Inc., C. E. McBride, doing business as Colonial Fast Freight, Belford Trucking Co., Inc., Alterman Transport Lines, Clay Hyder Trucking Lines, Tompkins Motor Lines, Inc., Arctic Express, Inc., Seaboard Food Express, Bonney Motor Express, Inc., Frigidways, Inc., Frozen Food Express, and C & D Transportation Co., dated February 2, 1954, for exemption of all carriers of commodities requiring refrigeration from § 207.5 (c) of the leasing rules; and good cause appearing therefor:

It is ordered, That on and after the date of this order and until March 1, 1955, common carriers authorized to transport, in interstate or foreign commerce, perishable commodities in refrigerated equipment be, and they are hereby, exempted from complying with the provisions of § 207.5 (c) of the rules and regulations prescribed in the above-entitled proceeding, solely with respect to drivers of refrigerated equipment which is being utilized in the transportation of perishable commodities.

It is further ordered, That the said § 207.5 (c) of the rules and regulations prescribed in the above-entitled proceeding, except insofar as it relates to the inspection of equipment, be, and it is hereby, reopened for further hearing at a time and place to be hereafter fixed.

It is further ordered, That the said petition, insofar as it seeks relief from § 207.4 (a) (3) of the rules and regulations prescribed in the above-entitled proceeding, be, and it is hereby, denied, for the reason that our notice of March 4, 1954, as modified by order of March 24, 1954, provides for further hearing on June 14, 1954, with respect to that section.

It is further ordered, That the order dated March 23, 1954, in this proceeding be, and it is hereby, vacated and set aside.

And it is further ordered, That this amended order shall be effective as of the date hereof.

Notice of this order shall be given to the general public by depositing a copy thereof in the Office of the Secretary of the Commission at Washington, D. C., and by filing a copy with the Director, Division of the Federal Register.

(49 Stat. 546, as amended; 49 U. S. C. 304)

By the Commission.

[SEAL] GEORGE W. LAIRD,
Secretary.

[F. R. Doc. 54-2940; Filed, Apr. 19, 1954; 8:48 a. m.]

PROPOSED RULE MAKING

DEPARTMENT OF AGRICULTURE

Agricultural Marketing Service

[7 CFR Part 921]

[Docket No. AO 222-A5]

HANDLING OF MILK IN THE SPRINGFIELD, MISSOURI, MARKETING AREA

NOTICE OF RECOMMENDED DECISION AND OPPORTUNITY TO FILE WRITTEN EXCEPTIONS WITH RESPECT TO PROPOSED AMENDMENTS TO TENTATIVE MARKETING AGREEMENT AND TO ORDER, AS AMENDED

Pursuant to the provisions of the Agricultural Marketing Agreement Act of 1937, as amended (7 U. S. C. 601 et seq.), and the applicable rules of practice and procedure, as amended, governing the formulation of marketing agreements and marketing orders (7 CFR Part 900), notice is hereby given of the filing with the Hearing Clerk of the recommended decision of the Deputy Administrator, Agricultural Marketing Service, United States Department of Agriculture, with respect to proposals to amend the tentative marketing agreement and the order, as amended, regulating the handling of milk in the Springfield, Missouri, marketing area (herein redesignated as the Ozark marketing area). Interested parties may file written exceptions to this decision with the Hearing Clerk, United States Department of Agriculture, Washington 25, D. C., not later than the close of business the 15th day after publication of this decision in the FEDERAL REGISTER. Exceptions should be filed in quadruplicate.

Preliminary statement. The hearing, on the record of which the following findings and conclusions were formulated, was conducted at Springfield, Missouri, on September 28-30, 1953, pursuant to notice thereof which was issued on September 8, 1953 (18 F. R. 5496) and in Fayetteville, Arkansas, on December 1-3, 1953, pursuant to notice thereof which was issued on November 10, 1953 (18 F. R. 7249).

The material issues of record are concerned with:

1. A temporary increase in the Class I price;
2. An extension of the marketing area;
3. An extension of regulation to the handling of non-Grade A milk for fluid consumption;
4. The establishment of standards which a plant must meet in order to be qualified as a pool plant;
5. The application of compensatory payments on unpriced milk disposed of as Class I milk in the marketing area;
6. The application of compensatory payments on Class I milk disposed of in the marketing area by handlers regulated under another order issued pursuant to the act;
7. The need for immediate action by the Secretary with respect to Issue No. 1;
8. The adoption of a base and excess plan for the payment of producers;
9. A price differential to be applicable to Class I milk received at specified locations;
10. An extension in the area to which milk may be transferred for Class II use; and
11. Level of the Class I price.

Findings and conclusions. By an emergency decision of the Assistant Secretary issued October 26, 1953 (18 F. R. 6829), action has been taken with respect to Issues No. 1 and No. 7. Findings and conclusions with respect to the remaining material issues, all of which are based on the evidence introduced at the hearing, and the record thereof, are as follows:

2. *Extension of marketing area.* The marketing area should be expanded to include all the territory within the limits of Benton, Boone, Marion and Washington counties in Arkansas, and Barry, Christian, Douglas, Greene, Howell, Laclede, Lawrence, Ozark, Taney, Webster, and Wright counties and the Fort Leonard Wood Military Reservation in Missouri. At the present time, the marketing area is limited to the city of Springfield, Missouri, which municipality does not represent the natural marketing area of Springfield distributors. Only about one-third of the Class I milk distributed on routes by handlers regulated under the order is sold in Springfield. Evidence on the record indicates that a substantial majority of the Grade A Class I sales throughout the proposed expanded marketing area is from the plants of these handlers.

Handlers now regulated under the order are the principal distributors in most of the larger cities in the marketing area herein proposed. Approximately one-half or more of the milk sold to stores in Lebanon, Monett and West Plains, Missouri, and Rogers, Harrison and Siloam Spring, Arkansas, comes from presently regulated plants. Approximately 75 percent of the milk sold to stores in Fayetteville, Arkansas, one of the most distant points within the expanded marketing area, is milk from regulated plants. These are the largest cities in the area which would be added to the marketing area.

The prices paid to producers by the handlers who would come under regulation by reason of expansion of the marketing area have been on a basis which may not be related to utilization at the plant of the buying handlers. Testimony at the hearing indicated that such prices are, in some cases, based on the blend prices paid by handlers subject to the Springfield and St. Louis orders, and these pay prices frequently represent payment for milk, all or most of which was used for Class I purposes. In some cases, part of the milk sold for Class I was obtained by handlers from ungraded sources.

Some of the handlers maintain their purchases from dairy farmers to the extent that such deliveries approximate their Class I sales in the months of flush production. Supplementary supplies are obtained by these handlers during the season of low production from Springfield handlers. In effect, these handlers are not handling their proportionate share of the reserve milk of the market. Acquisition of milk from the Springfield pool results in forcing producers now under the order to bear a disproportionate share of surplus milk. The fact that unregulated handlers selling in competition with regulated milk may buy milk from producers at fluid prices which reflect a disproportionate share of surplus, and sell such milk largely for Class I use, results in a considerable disparity of cost between handlers and in unstable competitive conditions.

Milk sold in the proposed expanded marketing area moves in the current of interstate commerce or directly burdens or affects such commerce. Substantial quantities of milk sold in the Arkansas portion of the marketing area are bottled in Missouri, and handlers located in Arkansas distribute milk in Missouri. The production areas from which handlers operating in both the Missouri and Arkansas parts of the area receive milk overlap. In addition, these production areas also include producers whose milk is delivered to plants of handlers supplying the St. Louis, Missouri; Tulsa, Oklahoma; and Dallas, Texas markets. Producers can and do shift back and forth between handlers in these markets and handlers in the proposed marketing area.

Comparable requirements of the municipal, county, and State health authorities having jurisdiction in the marketing area proposed herein facilitate the movement of milk between the various communities in the marketing area. The Missouri State Board of Health adopts as its regulations the U. S. Public Health Service Milk Ordinance, and, in turn, various of the Missouri cities in the proposed marketing area adopt the same regulation. Specifications and standards for milk sold as Grade A in Missouri are established by the State and are uniformly applicable to handlers in the Missouri portion of the proposed marketing area.

Sanitary standards for Grade A milk marketed in Arkansas are prescribed and administered by the Arkansas State Health Department. All inspections for any municipality or county in the State are made by representatives of the State Health Department. Approval for Grade A distribution in one location of the State is equivalent to approval for distribution anywhere in the State.

The flow of milk back and forth between Arkansas and Missouri communities, or between communities in these States within the marketing area herein proposed, is relatively free. The movement of milk between various localities in the proposed marketing area is further facilitated by various health jurisdictions accepting each others' inspection determinations.

Expansion of the marketing area as proposed will promote orderly marketing by assuring producers prices equivalent